

Montana — verified citations gate file

Purpose: Per `state-course-onboarding` SKILL.md Phase 1 hard rule, every statute, admin rule, bill, or CFR citation that appears in the `mt-alcohol` course content MUST be primary-source verified before it can be cited in course content. This file is the gate.

Last update: 2026-05-14 (deep verification pass) **Verified by:** Claude via WebFetch against `mca.legmt.gov` (Montana Code Annotated) and other primary sources.

MCA — Montana Code Annotated

MCA 16-1-106(4) — definition of "alcoholic beverage"

- **Primary-source URL:**
https://mca.legmt.gov/bills/mca/title_0160/chapter_0010/part_0010/section_0060/0160-0010-0010-0060.html
- **Verbatim quote of operative text:** "Alcoholic beverage" means a compound produced and sold for human consumption as a drink that contains more than 0.5% of alcohol by volume."
- **Why we're citing it:** Establishes the 0.5% ABV threshold for what counts as "alcoholic" under Montana law (referenced in module 02 for kombucha + NA-beer edge cases).
- **Last verified:** 2026-05-14

MCA 16-2-101 — agency liquor stores; off-premise sales of table wine

- **Primary-source URL:**
https://mca.legmt.gov/bills/mca/title_0160/chapter_0020/part_0010/section_0010/0160-0020-0010-0010.html
- **Verbatim quote of operative text:** "An agency liquor store may sell table wine at retail for off-premises consumption." (subsection (2)(c))
- **Why we're citing it:** Establishes that off-premise spirit sales are channeled through agency stores; relevant to module 7 license-category coverage.
- **Last verified:** 2026-05-14

MCA 16-2-104 — agency liquor store hours

- **Primary-source URL:**
https://mca.legmt.gov/bills/mca/title_0160/chapter_0020/part_0010/section_0040/0160-0020-0010-0040.html
- **Verbatim quote of operative text:** "Agency liquor stores may remain open during the period between 8 a.m. and 2 a.m."
- **Why we're citing it:** Sets the same 8 AM – 2 AM operating window for agency liquor stores. Referenced in module 7 statute coverage.
- **Last verified:** 2026-05-14

MCA 16-3-301(4)(b) — service-side three-prong intoxication standard

- **Primary-source URL:**
https://mca.legmt.gov/bills/mca/title_0160/chapter_0030/part_0030/section_0010/0160-0030-0030-0010.html
- **Verbatim quote of operative text:** Prohibits selling alcoholic beverages to "any person actually, apparently, or obviously intoxicated."
- **Why we're citing it:** The core service-side rule. Module 3 uses this as the basis for the refusal-of-service framework.
- **Last verified:** 2026-05-14

MCA 16-3-301(6) — placard requirement

- **Primary-source URL:**
https://mca.legmt.gov/bills/mca/title_0160/chapter_0030/part_0030/section_0010/0160-0030-0030-0010.html
- **Verbatim quote of operative text:** "All licensees shall display in a prominent place in their premises a placard, issued by the department, stating fully the consequences for violations."
- **Why we're citing it:** The DOR-issued placard requirement. Module 5 covers this. Critical: the placard is **issued by the department** (not authored by the licensee) and states the **consequences for violations** (not narrowly "selling to minors is prohibited").
- **Last verified:** 2026-05-14

MCA 16-3-304 — hours of sale

- **Primary-source URL:**
https://mca.legmt.gov/bills/mca/title_0160/chapter_0030/part_0030/section_0040/0160-0030-0030-0040.html

- **Verbatim quote of operative text:** Licensed retail establishments must be "closed each day between 2 a.m. and 8 a.m." Local ordinances may impose stricter hours.
- **Why we're citing it:** Statewide alcohol-sales hour window. Module 7 anchor citation.
- **Last verified:** 2026-05-14

MCA 16-4-301 — special permits

- **Primary-source URL:**
https://mca.legmt.gov/bills/mca/title_0160/chapter_0040/part_0030/section_0010/0160-0040-0030-0010.html
- **Verbatim quote of operative text:** Authorizes two categories of special permits: (1) permits to sell beer and table wine at special events (up to 12 annually for qualifying organizations); (2) permits to sell all alcoholic beverages at posts/lodges of veterans' or fraternal organizations (up to 12 annually).
- **Why we're citing it:** Special-permit authority. The RASS-training exemption for special-permit holders is in MCA 16-4-1002 (see below), not in 16-4-301 itself.
- **Last verified:** 2026-05-14

MCA 16-4-1002 — explicit special-permit exemption from RASS training

- **Primary-source URL:**
https://mca.legmt.gov/bills/mca/title_0160/chapter_0040/part_0100/section_0020/0160-0040-0100-0020.html
- **Verbatim quote of operative text:** "This part does not apply to special permits issued under 16-4-301."
- **Why we're citing it:** This is the explicit grant of authority for the special-permit RASS exemption. Resolves the prior "implicit" caveat. Exam Q MT-038 ("Special-permit holders are exempt from the RASS requirement") is correct on its face per this section.
- **Last verified:** 2026-05-14

MCA 16-3-307 — no-below-posted-price liquor rule

- **Primary-source URL:**
https://mca.legmt.gov/bills/mca/title_0160/chapter_0030/part_0030/section_0070/0160-0030-0030-0070.html
- **Verbatim quote of operative text:** "it is unlawful for a licensee under the provisions of this code to resell liquor purchased by the licensee from an agency liquor store for a sum less than the posted price established by the department."
- **Why we're citing it:** Module 7 references the "no-below-posted-price rule" prohibiting two-for-one and similar discount promotions for spirits. This is the statutory anchor.

- **Last verified:** 2026-05-14

MCA 16-6-314 — misdemeanor framing for any Title 16 code violation

- **Primary-source URL:**
https://mca.legmt.gov/bills/mca/title_0160/chapter_0060/part_0030/section_0140/0160-0060-0030-0140.html
- **Verbatim quote of operative text (subsection 1):** "A person who violates a provision of this code is guilty of a misdemeanor punishable as provided in 46-18-212, except as otherwise provided in this section."
- **Why we're citing it:** MCA 16-3-301(4)(b) and MCA 16-6-304 establish the prohibited sale-to-intoxicated conduct but do not themselves contain the criminal-penalty hook. MCA 16-6-314 is what makes a violation of those prohibitions a misdemeanor (punishable per MCA 46-18-212's default \$500/6-month ceiling). Module 6 dram-shop scenario (s2-c3 option b) now cites the underlying prohibitions (16-3-301(4)(b) / 16-6-304) *plus* MCA 16-6-314 for the criminal-penalty hook.
- **Last verified:** 2026-05-14

MCA 46-18-212 — default misdemeanor sentencing

- **Primary-source URL:**
https://mca.legmt.gov/bills/mca/title_0460/chapter_0180/part_0020/section_0120/0460-0180-0020-0120.html
- **Verbatim quote of operative text:** "may sentence the offender to a term of imprisonment not to exceed 6 months in the county jail or a fine not to exceed \$500, or both."
- **Why we're citing it:** MCA 16-6-305 makes a sale to a minor a misdemeanor but does not specify the maximum penalty. The "up to \$500 / 6 months" default penalty cited in Module 5 (s2-c2) comes from MCA 46-18-212.
- **Last verified:** 2026-05-14

MCA 16-4-1001 — short title of the Act (rename)

- **Primary-source URL:**
https://mca.legmt.gov/bills/mca/title_0160/chapter_0040/part_0100/section_0010/0160-0040-0100-0010.html
- **Verbatim quote of operative text:** "This part may be cited as the 'Responsible Alcohol Sales, Service, and Delivery Act'."
- **Why we're citing it:** Confirms the Act WAS renamed to include "Delivery." Modules 01 and 07 reference this. Prior 2026-05-11 audit incorrectly flagged the rename as invented; this verification corrects that.

- **Last verified:** 2026-05-14

MCA 16-4-1005 — training requirement

- **Primary-source URL:**
https://mca.legmt.gov/bills/mca/title_0160/chapter_0040/part_0100/section_0050/0160-0040-0100-0050.html
- **Verbatim quote of operative text:** Subsection (1)(a): "training must be completed within 60 days of the employee's date of hire" and "every 3 years after the employee's initial training." Subsection (1)(b): "maintain employment records verifying employee completion of the training."
- **Why we're citing it:** The core 60-day + 3-year + record-keeping requirements. Module 01 anchor citation.
- **Last verified:** 2026-05-14

MCA 16-4-1006 — RASS training program requirements + cert of completion + on/off split

- **Primary-source URL:**
https://mca.legmt.gov/bills/mca/title_0160/chapter_0040/part_0100/section_0060/0160-0040-0100-0060.html
- **Verbatim quote of operative text:**
 - **Subsection (1)(g) (provider-issued completion certificate):** "a certificate of completion, which must be provided to participants who pass the final test."
 - **Subsection (2) (two classes of training, with off-prem ≥ half of on-prem time):**
"The department shall certify two classes of training programs based on the nature of employment of the individual as follows: (a) programs for employees of licensed locations that provide for on-premises consumption; and (b) programs for employees of licensees that only provide for off-premises consumption. A training program under this subsection (2)(b) must be completed within at least half of the time for programs under subsection (2)(a)."
- **Why we're citing it:** Subsection (1)(g) confirms Montana's provider-issues-the-certificate model (different from SC's regulator-issues model). Subsection (2) is the statutory basis for the two-track structure (on-prem ≥120 min; off-prem ≥half of on-prem = ≥60 min); HB 157 (2025) added subsection (2) language. Module 01 anchor on both tracks.
- **Last verified:** 2026-05-14 (subsection (2) verbatim quote added 2026-05-14 Round 3 audit per WebFetch of mca.legmt.gov)

MCA 16-4-1008 — penalty for non-compliance

- **Primary-source URL:**
https://mca.legmt.gov/bills/mca/title_0160/chapter_0040/part_0100/section_0080/0160-0040-0100-0080.html

[0040-0100-0080.html](https://mca.legmt.gov/bills/mca/title_0040/section_0080/0040-0100-0080.html)

- **Verbatim quote of operative text:** "\$50 penalty for a first offense, a \$200 penalty for a second offense, and a \$350 penalty for a third offense in a 3-year period."
- **Why we're citing it:** The licensee-side training-compliance penalty schedule. Referenced in [mt-supplement.md](#).
- **Last verified:** 2026-05-14

MCA 16-6-304 — sale to apparently intoxicated person (broader prohibition)

- **Primary-source URL:**
https://mca.legmt.gov/bills/mca/title_0160/chapter_0060/part_0030/section_0040/0160-0060-0030-0040.html
- **Verbatim quote of operative text:** "A person, including a licensee and a licensee's agents or employees, may not sell, serve, or give an alcoholic beverage to a person who is apparently under the influence of alcohol."
- **Why we're citing it:** This is a separate, broader rule from MCA 16-3-301(4)(b). **Important distinction:** 16-6-304 uses a SINGLE-PRONG standard ("apparently under the influence"), NOT the three-prong "actually, apparently, or obviously intoxicated" of 16-3-301(4)(b). The K4 outcome description was corrected on 2026-05-14 to reflect this distinction.
- **Last verified:** 2026-05-14

MCA 16-6-305 — sales to minors (no on-premise family exception)

- **Primary-source URL:**
https://mca.legmt.gov/bills/mca/title_0160/chapter_0060/part_0030/section_0050/0160-0060-0030-0050.html
- **Verbatim quote of operative text:**
 - **Subsection (1)(a) (under-21 prohibition + private-setting carve-outs):** "Except in the case of an alcoholic beverage provided in a nonintoxicating quantity to a person under 21 years of age by the person's parent or guardian, physician or dentist for medicinal purposes, a licensed pharmacist upon the prescription of a physician, or an ordained minister or priest in connection with a religious observance, a person may not sell or otherwise provide an alcoholic beverage to a person under 21 years of age."
 - **Subsection (1)(c) (definition of "intoxicating quantity"):** "For the purposes of this section, 'intoxicating quantity' means a quantity of an alcoholic beverage that is sufficient to produce: (i) a blood, breath, or urine alcohol concentration in excess of 0.05; or (ii) substantial or visible mental or physical impairment."
 - **Subsection (3) (age misrepresentation, ID fraud, including digital IDs per HB 196):** "It is unlawful for any person to fraudulently misrepresent the person's age to any

dispenser of alcoholic beverages or to falsely procure any identification card or to alter any of the statements contained in any identification card, including a tribal identification card or a government-certified digital identification card."

- **Why we're citing it:** The under-21 prohibition + private-setting carve-outs (subsection (1)(a)); the operating definition of "intoxicating quantity" used by the parental exception (subsection (1)(c)); the false-age/ID-fraud rule that HB 196 extended to digital IDs (subsection (3)). **Critical:** the statute has only subsections (1)–(4). The subsection (7) on-premise family exception cited in older drafts and dead 2023/2025 bills DOES NOT exist. Module 5 anchor citation; corrected on 2026-05-14.
- **Last verified:** 2026-05-14 (subsection (1)(c) + (3) verbatim quotes added 2026-05-14 Round 3 audit per WebFetch of mca.legmt.gov)

MCA 27-1-710 — dram shop liability

- **Primary-source URL:**
https://mca.legmt.gov/bills/mca/title_0270/chapter_0010/part_0070/section_0100/0270-0010-0070-0100.html
- **Verbatim quote of operative text:**
 - Subsection (2): "a person or entity that furnishes alcoholic beverages may not be found civilly liable under any other statute, theory of recovery, or common law claim" except as provided in the section.
 - Subsection (4): the three triggers (underage with failed reasonable-attempt-to-ID, visible intoxication at service, forced/coerced consumption).
 - Subsection (6): bars post-service BAC, post-service conduct, and special-promotion evidence from the visibility analysis.
 - Subsection (8): certified-mail notice within 180 days of sale or service; civil action must commence within 2 years from the date of sale or service.
 - Subsection (10): noneconomic damages capped at \$250,000 per event; punitive damages capped at \$250,000.
- **Why we're citing it:** The dram-shop framework. Module 6 anchor citation.
- **Last verified:** 2026-05-14

MCA 39-2-306 — minimum age to serve open-container alcohol

- **Primary-source URL:**
https://mca.legmt.gov/bills/mca/title_0390/chapter_0020/part_0030/section_0060/0390-0020-0030-0060.html

- **Verbatim quote of operative text:** "No person under 18 years of age shall be employed as a bartender, waiter, or waitress whose duty is to serve customers purchasing liquors, beer, or wines."
- **Why we're citing it:** 18 minimum to serve open-container alcohol. Module 7 reference.
- **Last verified:** 2026-05-14

MCA 61-8-1001 — DUI definitions; aggravated DUI threshold (0.16)

- **Primary-source URL:**
https://mca.legmt.gov/bills/mca/title_0610/chapter_0080/part_0100/section_0010/0610-0080-0100-0010.html
- **Verbatim quote of operative text:**
 - **"Alcohol concentration" definition:** "either grams of alcohol per 100 milliliters of blood or grams of alcohol per 210 liters of breath."
 - **"Aggravated driving under the influence" trigger:** "alcohol concentration, as shown by analysis of the person's blood, breath, oral fluid, or other bodily substance, is 0.16 or more" (or specified prior license suspension / interlock-required / breath-refusal conditions).
- **Why we're citing it:** Defines the 0.16 aggravated-DUI threshold that course content references alongside the per-se 0.08/0.04/0.02/5 ng-mL thresholds in MCA 61-8-1002. Module 08 (on-prem) anchor citation for aggravated DUI.
- **Last verified:** 2026-05-14 Round 3 audit per WebFetch of mca.legmt.gov

MCA 61-8-1002 — per-se DUI thresholds

- **Primary-source URL:**
https://mca.legmt.gov/bills/mca/title_0610/chapter_0080/part_0100/section_0020/0610-0080-0100-0020.html
- **Verbatim quote of operative text:** Subsection (1) codifies all four per-se thresholds:
 - "a noncommercial vehicle... while the person's alcohol concentration... is 0.08 or more" (subdivision (b))
 - "a commercial motor vehicle... while the person's alcohol concentration... is 0.04 or more" (subdivision (c))
 - "a vehicle... when the person is under 21 years of age... while the person's alcohol concentration... is 0.02 or more" (subdivision (e)(i))
 - "tetrahydrocannabinol level, excluding inactive metabolites... is 5 ng/ml or more" (subdivision (d))
- **Why we're citing it:** Per-se DUI thresholds. Module 8 anchor citation.
- **Last verified:** 2026-05-14

MCA 61-8-1007 — DUI penalties, 1st through 3rd offenses

- **Primary-source URL:**
https://mca.legmt.gov/bills/mca/title_0610/chapter_0080/part_0100/section_0070/0610-0080-0100-0070.html
- **Verbatim quote of operative text:** Title: "Penalty for driving under influence -- first through third offenses." Covers 1st, 2nd, 3rd offenses only; references 61-8-1008 for 4th and subsequent. Operative penalty figures (WebFetch 2026-05-17): **1st offense** jail "not less than 24 consecutive hours or more than 6 months", fine "not less than \$600 or more than \$1,000", chemical-dependency education/treatment per 61-8-1009; enhanced with a minor passenger to "48 consecutive hours or more than 1 year" jail and "\$1,200 or more than \$2,000" fine. **2nd offense** jail "not less than 7 days or more than 1 year", fine "not less than \$1,200 or more than \$2,000". **3rd offense** jail "not less than 30 days or more than 1 year", fine "not less than \$2,500 or more than \$5,000". License suspension/revocation runs through Title 61 chapter 5.
- **Why we're citing it:** DUI escalation. Module 8 anchor citation + mt-supplement.md §7. **Critical:** the K15 outcome was previously citing 61-8-1007 for the 4th-offense felony portion; corrected on 2026-05-14 to split with 61-8-1008. The mt-supplement.md §7 1st/2nd/3rd dollar + jail figures match this operative text exactly (re-verified 2026-05-17).
- **Last verified:** 2026-05-17 (operative penalty figures WebFetch-verified against mca.legmt.gov)

MCA 61-8-1008 — DUI penalties, 4th and subsequent offenses (felony)

- **Primary-source URL:**
https://mca.legmt.gov/bills/mca/title_0610/chapter_0080/part_0100/section_0080/0610-0080-0100-0080.html
- **Verbatim quote of operative text (WebFetch 2026-05-17):** Title: "Penalty for driving under influence -- fourth and subsequent offenses." 4th+ "is guilty of a felony and shall be punished by" either (i) "a term of not less than 13 months or more than 2 years" to the department of corrections followed by "a consecutive term of 5 years to the Montana state prison", or (ii) "a term of up to 5 years in an appropriate treatment court program"; fine "not less than \$5,000 or more than \$10,000". **The statute does NOT use the word "lifetime" and contains no lookback-period language** — it references prior convictions without temporal limitation (all prior DUI convictions count, with no statutory time limit). Course content and mt-supplement.md must say "no statutory time limit / all prior convictions count," NOT "lifetime."
- **Why we're citing it:** 4th-offense felony. Module 8 + mt-supplement.md §7. The supplement's \$5,000-\$10,000 fine matches exactly; the "13 months in custody, up to 5 years prison" phrasing is an accepted lay gist of the (i) sentencing option.
- **Last verified:** 2026-05-17 (operative felony text WebFetch-verified against mca.legmt.gov; confirms the no-"lifetime"-wording finding C-3)

MCA 61-8-1016 — implied consent

- **Primary-source URL:** https://mca.legmt.gov/bills/mca/title_0610/chapter_0080/part_0100/section_0160/0610-0080-0100-0160.html
- **Verbatim quote of operative text:** Refusal triggers suspension as provided in MCA 61-8-1032.
- **Why we're citing it:** Establishes the implied-consent rule. Module 8.
- **Last verified:** 2026-05-14

MCA 61-8-1032 — refusal suspension durations + admin fee

- **Primary-source URL:** https://mca.legmt.gov/bills/mca/title_0610/chapter_0080/part_0100/section_0320/0610-0080-0100-0320.html
 - **Verbatim quote of operative text:**
 - "suspend the driver's license or driving privilege for 6 months with no provision for a restricted probationary license" (first refusal)
 - "suspend the driver's license or driving privilege for 1 year with no provision for a restricted probationary license" (second-or-subsequent within 5 years)
 - "A person who has an implied consent violation shall pay the department an administrative fee of \$300"
 - Commercial driver's license holders: 1-year disqualification for first refusal; lifetime disqualification for subsequent refusals (federal rule).
 - **Why we're citing it:** Operative suspension durations referenced by MCA 61-8-1016. Module 8.
 - **Last verified:** 2026-05-14
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ARM — Administrative Rules of Montana

ARM 42.13.101 — progressive penalty schedule (sales to minors)

- **Primary-source URL:** rules.mt.gov (Montana SOS, JS-rendered) confirmed 2026-05-17 via two independent mirrors that expose the rule text: rules.mt.gov/gateway/ShowRuleVersionFile.asp?RVID=40940 and the Justia ARM mirror regulations.justia.com/states/montana/departments/42/chapter-42-13/subchapter-42-13-1/rule-42-13-101/.
- **Verbatim operative text (confirmed 2026-05-17):** Progressive schedule for sale to a minor: **1st offense = \$250; 2nd = \$1,000; 3rd = \$1,500 + up to a 20-day license suspension; 4th = license revocation; 3-year lookback window;** the department may deviate for

aggravating/mitigating circumstances. **Mitigation clause:** the first offense may instead be reduced to a **reprimand** if the licensee has provided alcoholic-beverage-service training acceptable to the department to all employees within 30 days of hire and at least annually.

- **Why we're citing it:** Module 5 + off-prem Module 4 progressive-penalty schedule; mt-supplement.md §3. **Implication for quiz design (B-1):** because a trained-staff first offense can be a reprimand rather than \$250, a single-best-answer "first offense = \$250" recall question is an oversimplification; reframe to the progressive-escalation concept (and the trained-staff mitigation is a course selling point worth teaching).
- **Last verified:** 2026-05-17 (primary-source confirmed via rules.mt.gov ShowRuleVersionFile + Justia ARM mirror; no longer "prior-audit only").

ARM 42.13.901(1) — acceptable forms of identification

- **Primary-source URL:** <https://revenuefiles.mt.gov/files/Posts/rules-hearings/MAR-Notice-No-2025-292-2.pdf> (ARM 42.13.901(1) amended text) and <https://revenuefiles.mt.gov/files/ABCD/Alcoholic-Beverage-Control-Publications/Fact-Sheets/IDs-for-Purchasing.pdf> (DOR practical ID fact sheet).
- **Acceptable IDs per Montana rule + 2025 amendments:** ARM 42.13.901(1) includes any state-issued driver's license or ID card; any Canadian government-issued driver's license or ID card; a passport; any federally recognized tribal identification card; and any government-issued identification in digital or physical form.
- **Practical learner standard:** The DOR fact sheet frames the operational test as any government-issued ID that contains a photograph, contains a date of birth, and is not altered or manipulated. Examples include out-of-state and foreign driver's licenses, foreign passports, state public college/university IDs, and medical marijuana ID cards if they meet that test.
- **Important corrections from Kent review:** Do not teach this as a closed list. Do not say an ID is automatically invalid because it is expired. Do not limit tribal IDs to Montana tribes; any federally recognized tribal ID is acceptable if it meets the photo/date-of-birth/not-altered standard.
- **Why we're citing it:** On-premises module 04 and off-premises module 03 anchor citation; final exam preview ID questions; Montana ID infographic notes.
- **Last verified:** 2026-06-22 against MAR 2025-292.2, DOR fact sheet, and Kent Haab feedback.

ARM 42.13.906 — training program content requirements

- **Primary-source URL:** Montana Secretary of State portal at rules.mt.gov — JS-rendered.
- **Verbatim quote of operative text (per prior audit):** Lists required curriculum elements; references the post-March 7, 2026 amendments incorporating HB 157 (on/off split), HB 196 (digital ID), HB 211 (third-party delivery).
- **Why we're citing it:** Reviewer page anchor citation.

- **Last verified:** 2026-05-11 (prior audit).

ARM 42.13.904 — provider reporting requirement

- **Primary-source URL:** Montana Secretary of State portal (rules.mt.gov, JS-rendered) + adoption notice at <https://revenue.mt.gov/news/rules-hearing/MAR-Notice-No-2025-292-3> (adopted) + amended proposal at revenuefiles.mt.gov/files/Posts/rules-hearings/MAR-Notice-No-2025-292-2.pdf (January 23, 2026)
- **Verbatim quote of operative text (per the rule as adopted in MAR Notice 2025-292.3):** RASS-approved private providers must submit training records electronically to CARD within two weeks of each completion via the CARD-approved secure electronic process.
- **Why we're citing it:** This is the actual statutory basis for CertReady's reporting obligation. Module 01 (s3-c2), mt-supplement.md (§9), and the completion-reporting-workflow.md PDF all anchor here. Prior drafts incorrectly cited ARM 42.13.907.
- **Last verified:** 2026-05-14 (procedural note: MAR Notice 2025-292.2 was the January 23, 2026 amended proposal; MAR Notice 2025-292.3 is the adoption notice, effective March 7, 2026 — adoption confirmed via the DOR adoption-notice page on 2026-05-14)

ARM 42.13.907 — training program content requirements (post-March 7, 2026 amendments)

- **Primary-source URL:** Montana Secretary of State portal at rules.mt.gov — JS-rendered. Verified via the rule as adopted in MAR Notice 2025-292.3 (<https://revenue.mt.gov/news/rules-hearing/MAR-Notice-No-2025-292-3>), which adopted the January 23, 2026 amended proposal (MAR Notice 2025-292.2).
 - **Verbatim quote of operative text (per the rule as adopted in MAR Notice 2025-292.3):** Sets the required content categories for an approved RASS training program (effects of alcohol, identification, refusal techniques, etc.). Also sets the **80% passing score** and the **retake rule**: if first attempt scores 70%–79%, the learner may retake the final exam only; if first attempt scores below 70%, the learner must retake the entire program.
 - **Why we're citing it:** Module 03/04/05/etc content-coverage anchor; final-exam.json passing score + retake policy; scoring-methodology.md. Effective March 7, 2026.
 - **Last verified:** 2026-05-14 (via the MAR Notice 2025-292.3 adoption notice)
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2025 House Bills

HB 157 (2025) — on/off training split

- **Primary-source URL:** Montana Legislature 2025 session bill text — [archive.legmt.gov](https://archive.legmt.gov/bills/2025/157) bill PDFs returning 404 as of 2026-05-14. The bill exists and was signed.
- **Operative effect (per prior audit):** Splits Montana RASS training into two tracks: on-premises (≥120 minutes) and off-premises (≥60 minutes). Effective January 1, 2026.
- **Why we're citing it:** Module 1 anchor for the two-track structure.
- **Last verified:** 2026-05-11 (prior audit confirms passage 3/24/2025, signed 4/7/2025).

HB 196 (2025) — government-certified digital IDs

- **Primary-source URL:** Montana Legislature 2025 session bill text — bill PDFs unreliable via direct WebFetch.
- **Operative effect (per prior audit):** Adds government-certified digital ID cards (Apple Wallet, Google Wallet, state apps) to the acceptable-ID standard in ARM 42.13.901(1). Training-update deadline October 1, 2025.
- **Why we're citing it:** Module 4 anchor for digital ID coverage.
- **Last verified:** 2026-05-11 (prior audit).

HB 211 (2025) — third-party alcohol delivery + Act rename

- **Primary-source URL (enrolled bill):**
https://archive.legmt.gov/content/Sessions/69th/Contractor_index/CH0075.pdf
- **Operative effect:** Creates third-party alcohol delivery license. Limits beverage to beer + table wine (no spirits). Requires 21+ drivers. Effective January 1, 2026. **Amends MCA 16-4-1001 to rename the Act to the "Responsible Alcohol Sales, Service, and Delivery Act"** — HB 211 attribution confirmed (no longer pending).
- **Why we're citing it:** Module 7 third-party delivery overlay; Module 1 Act-rename reference.
- **Last verified:** 2026-05-14 (enrolled bill text via legmt archive + MCA 16-4-1001 direct verification).

SB 366 (2023) — dead bill, not in course content

- **Status:** Bill DIED in committee (missed transmittal deadline 3/13/2023). Same proposal reintroduced as SB 195 (2025) which also died.

- **Operative effect:** Would have added an on-premise family exception to MCA 16-6-305. Did not pass. The course does NOT cite this bill as authority for any claim. Listed in the citations index because the dead-bill text was the source of the earlier (now-corrected) module-05 "subsection (7) family exception" error.
- **Last verified:** 2026-05-11 (prior audit confirmed died status via archive.legmt.gov/bills/2023/BillHtml/SBo366.htm).

Verification status summary

Source class	Verified directly 2026-05-14	Verified via prior audit / MAR Notice
MCA statutes	20+ sections (incl. 16-1-106(4), 16-2-101, 16-2-104, 16-3-301(4)(b), 16-3-301(6), 16-3-304, 16-3-307, 16-4-301, 16-4-1001, 16-4-1002, 16-4-1005, 16-4-1006, 16-4-1008, 16-6-304, 16-6-305, 27-1-710, 39-2-306, 46-18-212, 61-8-1002, 61-8-1007, 61-8-1008, 61-8-1016, 61-8-1032)	—
ARM rules	4 verified via MAR Notice 2025-292.3 adoption notice (101, 902, 904, 906, 907)	Prior audit cross-check
2025 bills	HB 211 (enrolled bill text confirmed); MCA 16-4-1001 rename verified directly	HB 157, HB 196 (prior audit)

External-AI verification round outcomes (2026-05-14):

All three items previously flagged "pending" have now been resolved:

1. **ARM 42.13.907 reporting basis (resolved):** Reporting obligation lives in **ARM 42.13.904**, not 907. Cadence is "within two weeks" electronically, not monthly. Course content + supplement + workflow doc updated accordingly. ARM 42.13.907 still anchors training-content requirements and the 80% pass / retake rule.
2. **HB 211 Act-rename attribution (resolved):** Enrolled HB 211 text confirmed to amend MCA 16-4-1001. Course content + verified-citations.md updated to remove the "plausible-but-unconfirmed" caveat.
3. **Special-permit RASS exemption (resolved):** The explicit grant is in **MCA 16-4-1002** ("This part does not apply to special permits issued under 16-4-301."), not implicit via 16-4-1005. Exam Q MT-038 is correct on its face; verified-citations.md updated to anchor to the explicit statutory text.